

## OFFICE OF THE SECRETARY

P.O. Box 942883

Sacramento, CA 94283-0001

JUN 28 2018

Honorable Michele D. Levin  
Judge of the Superior Court  
County of Riverside  
4100 Main Street  
Riverside, CA 92501



Re: Cline, Rudy Anthony  
CDC No.: AM0951  
Case No.: RIF1102114  
Date of Sentence: August 7, 2012

Dear Honorable Michele D. Levin:

The purpose of this letter is to provide the court with authority to resentence Rudy Anthony Cline pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Cline was sentenced in 2012, and was convicted of section 245, subdivision (A)(1), Assault w/deadly. The trial court sentenced inmate Cline on August 7, 2012. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Cline's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Cline's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

  
SCOTT KERNAN  
Secretary

Enclosures:  
Abstract of Judgment-Prison Commitment-Determinate  
Minute Order  
Amended Information

cc: Honorable Becky Lynn Dugan, Riverside County Presiding Judge  
Riverside District Attorney  
VMBA Attorney



Date 08/31/12 ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE  
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

Per NM828

|                                                                                                                                                                                     |                                                                                                                            |                                                                                                |  |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|--|
| SUPERIOR COURT OF CALIFORNIA, COUNTY OF:<br><u>Riverside Sheriff's Department</u>                                                                                                   |                                                                                                                            | FILED<br>SUPERIOR COURT OF CALIFORNIA<br>COUNTY OF RIVERSIDE<br>AUG 08 2012<br><u>A. Nuñez</u> |  |
| PEOPLE OF THE STATE OF CALIFORNIA vs.<br>DEFENDANT: <u>RUDY ANTHONY CLINE</u><br>AKA:<br>CII#: <u>A29988281</u><br>BOOKING #:<br>COMMITMENT TO STATE PRISON<br>ABSTRACT OF JUDGMENT | DOB: <u>11/21/1993</u><br><u>H</u><br><input type="checkbox"/> NOT PRESENT<br><input type="checkbox"/> AMENDED<br>ABSTRACT | RIF1102114 ✓<br>-A<br>-B<br>-C<br>-D                                                           |  |
| DATE OF HEARING<br><u>08/07/2012</u>                                                                                                                                                | DEPT. NO.<br><u>64</u>                                                                                                     | JUDGE<br><u>Michele D. Levine</u>                                                              |  |
| CLERK                                                                                                                                                                               | REPORTER                                                                                                                   | PROBATION NO. OR PROBATION<br>OFFICER <input type="checkbox"/> IMMEDIATE SENTENCING<br>OFFICER |  |
| COUNSEL FOR PEOPLE<br><u>Laura Ozols</u>                                                                                                                                            |                                                                                                                            | COUNSEL FOR DEFENDANT<br><u>VMBA Ryan Markson</u> <input type="checkbox"/> APPTD               |  |

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment  
\_\_\_\_ (number of pages attached)

| COUNT | CODE | SECTION NO. | CRIME            | YEAR CRIME<br>COMMITTED | DATE OF<br>CONVICTION<br>(MO/DAY/YR) | CONVICTED<br>BY |       |      | TERM<br>(L/M/D) | CONCURRENT | CONSECUTIVE<br>1/3 VIOLENT | CONSECUTIVE<br>1/3 NON-VIOLENT | CONSECUTIVE<br>FULL TERM | INCOMPLETE<br>SENTENCE<br>(other to term 5) | 654 STAY | PRINCIPAL OR<br>CONSECUTIVE<br>TIME IMPOSED |      |
|-------|------|-------------|------------------|-------------------------|--------------------------------------|-----------------|-------|------|-----------------|------------|----------------------------|--------------------------------|--------------------------|---------------------------------------------|----------|---------------------------------------------|------|
|       |      |             |                  |                         |                                      | JURY            | COURT | PLEA |                 |            |                            |                                |                          |                                             |          | YRS.                                        | MOS. |
| 11    | PC   | 245(A)(1)   | Assault w/deadly | 11                      | 06/26/12                             |                 |       | X    | U               |            |                            |                                |                          |                                             |          | 4                                           |      |
|       |      |             |                  |                         |                                      |                 |       |      |                 |            |                            |                                |                          |                                             |          |                                             |      |
|       |      |             |                  |                         |                                      |                 |       |      |                 |            |                            |                                |                          |                                             |          |                                             |      |
|       |      |             |                  |                         |                                      |                 |       |      |                 |            |                            |                                |                          |                                             |          |                                             |      |
|       |      |             |                  |                         |                                      |                 |       |      |                 |            |                            |                                |                          |                                             |          |                                             |      |
|       |      |             |                  |                         |                                      |                 |       |      |                 |            |                            |                                |                          |                                             |          |                                             |      |

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| COUNT | ENHANCEMENT   | TIME IMPOSED<br>OR "S" FOR<br>STAYED | ENHANCEMENT     | TIME IMPOSED<br>OR "S" FOR<br>STAYED | ENHANCEMENT | TIME IMPOSED<br>OR "S" FOR<br>STAYED | TOTAL |
|-------|---------------|--------------------------------------|-----------------|--------------------------------------|-------------|--------------------------------------|-------|
| 11    | PC 12022.7(a) | 03                                   | PC 186.22(B)(1) | 03                                   |             |                                      | 6     |
|       |               |                                      |                 |                                      |             |                                      |       |
|       |               |                                      |                 |                                      |             |                                      |       |
|       |               |                                      |                 |                                      |             |                                      |       |
|       |               |                                      |                 |                                      |             |                                      |       |
|       |               |                                      |                 |                                      |             |                                      |       |

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| ENHANCEMENT | TIME IMPOSED<br>OR "S" FOR<br>STAYED | ENHANCEMENT | TIME IMPOSED<br>OR "S" FOR<br>STAYED | ENHANCEMENT | TIME IMPOSED<br>OR "S" FOR<br>STAYED | TOTAL |
|-------------|--------------------------------------|-------------|--------------------------------------|-------------|--------------------------------------|-------|
|             |                                      |             |                                      |             |                                      |       |
|             |                                      |             |                                      |             |                                      |       |
|             |                                      |             |                                      |             |                                      |       |
|             |                                      |             |                                      |             |                                      |       |

4. ☐ Defendant was sentenced per ☐ PC 667(b)-(i) or PC 1170.12 (two-strikes)  
☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed (Paper Commitment). Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

| COUNTY | CASE NUMBER |
|--------|-------------|
|        |             |
|        |             |
|        |             |

6. TOTAL TIME ON ATTACHED PAGES:
7. ☐ Additional indeterminate term (see CR-292).
8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 10



8/21/12 ①

'12AUG15am 9:13 WSP RECORDS



|                                                                        |    |    |       |
|------------------------------------------------------------------------|----|----|-------|
| PEOPLE OF THE STATE OF CALIFORNIA vs.<br>DEFENDANT: RUDY ANTHONY CLINE |    |    |       |
| RIF1102114                                                             | -A | -B | -C -D |

## 9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

## a. Restitution Fine(s):

Case A: \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$ 200.00 per PC 1202.45(b) suspended unless parole is revoked  
\$ \_\_\_\_\_ per PC 1202.44 is now due, probation having been revoked.  
Case B: \$ \_\_\_\_\_ per PC 1202.4(b) forthwith per PC 2085.5; \$ \_\_\_\_\_ per PC 1202.45(b) suspended unless parole is revoked  
\$ \_\_\_\_\_ per PC 1202.44 is now due, probation having been revoked.  
Case C: \$ \_\_\_\_\_ per PC 1202.4(b) forthwith per PC 2085.5; \$ \_\_\_\_\_ per PC 1202.45(b) suspended unless parole is revoked  
\$ \_\_\_\_\_ per PC 1202.44 is now due, probation having been revoked.  
Case D: \$ \_\_\_\_\_ per PC 1202.4(b) forthwith per PC 2085.5; \$ \_\_\_\_\_ per PC 1202.45(b) suspended unless parole is revoked  
\$ \_\_\_\_\_ per PC 1202.44 is now due, probation having been revoked.

## b. Restitution per PC 1202.4(f):

Case A: \$ \_\_\_\_\_ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
Case B: \$ \_\_\_\_\_ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
Case C: \$ \_\_\_\_\_ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
Case D: \$ \_\_\_\_\_ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund

☐ \* Victim names(s), if known, and amount breakdown in item 11, below ☐ \* Victim names(s) in probation officer's report.

## c. Fine(s):

Case A: \$ \_\_\_\_\_ per PC 1202.5. \$ \_\_\_\_\_ per VC 23550 or \_\_\_\_\_ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ \_\_\_\_\_ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
Case B: \$ \_\_\_\_\_ per PC 1202.5. \$ \_\_\_\_\_ per VC 23550 or \_\_\_\_\_ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ \_\_\_\_\_ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
Case C: \$ \_\_\_\_\_ per PC 1202.5. \$ \_\_\_\_\_ per VC 23550 or \_\_\_\_\_ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ \_\_\_\_\_ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
Case D: \$ \_\_\_\_\_ per PC 1202.5. \$ \_\_\_\_\_ per VC 23550 or \_\_\_\_\_ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ \_\_\_\_\_ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$ 40.00 per PC 1465.8 e. Criminal Conviction Assessment: \$ 30.00 per GC 70373

10. TESTING a. ☐ Compliance with PC 296 verified b. ☐ AIDS pursuant to PC 1202.1 c. ☐ other (specify):

11. Other orders (specify):

## 12. IMMEDIATE SENTENCING:

☐ Probation to prepare and submit post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: Hispanic

## 13. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at Initial sentencing hearing  
b. ☐ at resentencing per decision on appeal  
c. ☐ after revocation of probation  
d. ☐ at resentencing per recall of commitment (PC 1170(d).)  
e. ☐ Other (specify):

## 14. CREDIT FOR TIME SERVED

| CASE                       | TOTAL CREDITS | ACTUAL                                                                                  | LOCAL CONDUCT                                                 |
|----------------------------|---------------|-----------------------------------------------------------------------------------------|---------------------------------------------------------------|
| A                          | 224           | 195                                                                                     | 29 <input checked="" type="checkbox"/> 2933.1                 |
| B                          |               |                                                                                         | <input type="checkbox"/> 4019 <input type="checkbox"/> 2833.1 |
| C                          |               |                                                                                         | <input type="checkbox"/> 4019 <input type="checkbox"/> 2833.1 |
| D                          |               |                                                                                         | <input type="checkbox"/> 4019 <input type="checkbox"/> 2833.1 |
| Date Sentenced Pronounced: |               | Time Served in State Institution:                                                       |                                                               |
| 08/07/12                   |               | <input type="checkbox"/> DMH <input type="checkbox"/> CDCR <input type="checkbox"/> CRC |                                                               |

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the Director of the California Department of Corrections.

☐ other (specify):

I hereby certify the foregoing to be a correct abstract of the judgment made in this action

DEPUTY'S SIGNATURE

DATE

08/08/2012



SUPERIOR COURT OF CALIFORNIA, COUNTY OF RIVERSIDE  
4100 Main Street  
Riverside, CA 92501

People of the State of California  
Vs.  
RUDY ANTHONY CLINE

CASE NO. RIF1102114

MINUTE ORDER

=====  
Sentencing  
Date: .08/07/12 Time: 8:30 am Dept/Div: 64  
=====  
Charges: 4) 664/187(A) PC-F D, 5) 245(A)(1) PC-F D, 6) 245(A)(1) PC-F D  
7) 245(A)(1) PC-F D, 8) 186.22(A) PC-F D, 11) 245(A)(1) PC-F C

VIOLATION DATE: 04/14/11  
-----

At 1:50, the following proceedings were held:  
Honorable Judge Michele D. Levine Presiding.  
Court Reporter: L. Johnson.  
People represented by Deputy District Attorney: Laura Ozols.  
Defendant Represented By VMBA Ryan Markson.  
Defendant Present.  
Court has read and considered letters from R. Garcia.  
Court has read and considered letter from Brittney Carpenter.  
Per the people's Marcy's Law has been complied  
with  
No Legal Cause why sentence should not now be pronounced.  
Defendant Waives Arraignment For pronouncement of judgment.  
- STATE PRISON SENTENCE -  
Probation is denied and a State Prison sentence is imposed as  
follows:  
As to Count(s) 11, the Court imposes the UPPER term of 4 year(s)  
0 month(s).  
Principal Count Deemed to be Count 11.  
As to Enhancement G1-12022.7(a)PC in Count 11, the Court  
imposes 3 years.  
Enhancement G1-12022.7(a)PC in Count 11 to run consecutive to  
sentence imposed in Count 11.  
As to Enhancement GA-186.22(B)(1)PC in Count 11, the Court  
imposes 3 years.  
Enhancement GA-186.22(B)(1)PC in Count 11 to run consecutive to  
sentence imposed in Count 11.  
Sentenced to State Prison for a total term of 10 years and 0  
months.  
Credit for time served of 195 days actual served plus 29 days  
pursuant to 2933.1 PC for a total of 224 days. (Violent Felony)  
Pay restitution fine in the amount of \$200.00 pursuant to  
1202.4(B) PC. Div. Adult Institutions to collect obligation



8/08/12

Page: 2

Case Number : RIF1102114 People vs. RUDY CLINE

pursuant to 2085.5 PC

Pay additional Parole Revocation restitution fine in the amount of \$200.00 per 1202.45(B) PC. Per PC 1202.45 fine is suspended unless parole is revoked

Pay Court Operations Assessment \$40.00, \$40. per convicted charge. Div of Adult Inst. to collect & transfer to Trial Court Fund (PC 1465.8(a)(1))

Pay criminal conviction assessment fee of \$30.00 [\$30 per convicted charge]; Payable to Division of Adult Institutions (GC 70373)

Court finds that defendant does not have the ability to pay booking fee.

Court finds that defendant does not have the ability to pay attorney fees.

Register immediately or upon release from custody and thereafter as required by law with local law enforcement agency pursuant to 186.30 PC.

A copy of this minute order is sent this date to Law Enforcement Agency - RSO, pursuant to Section 186.31 PC.

Oral Motion By PEOPLE regarding DISMISS REMAINING COUNTS is called for hearing.

Motion Granted

Count(s) 4 5 6 7 8 dismissed in the interest of justice. (1385 PC)

Sentence to be served in State Prison. Sheriff to deliver defendant to: RECPT. CTR.

- - Custody Status/Information - -

Remanded To Custody of Riverside Sheriff.

Minute Order printed to Robert Presley Detention Center.

Dispo

This will be intended to be a  
"CERTIFIED COPY"

Each document to which this certificate is attached is certified to be a full, true and correct copy of the original on file and of record in my office.

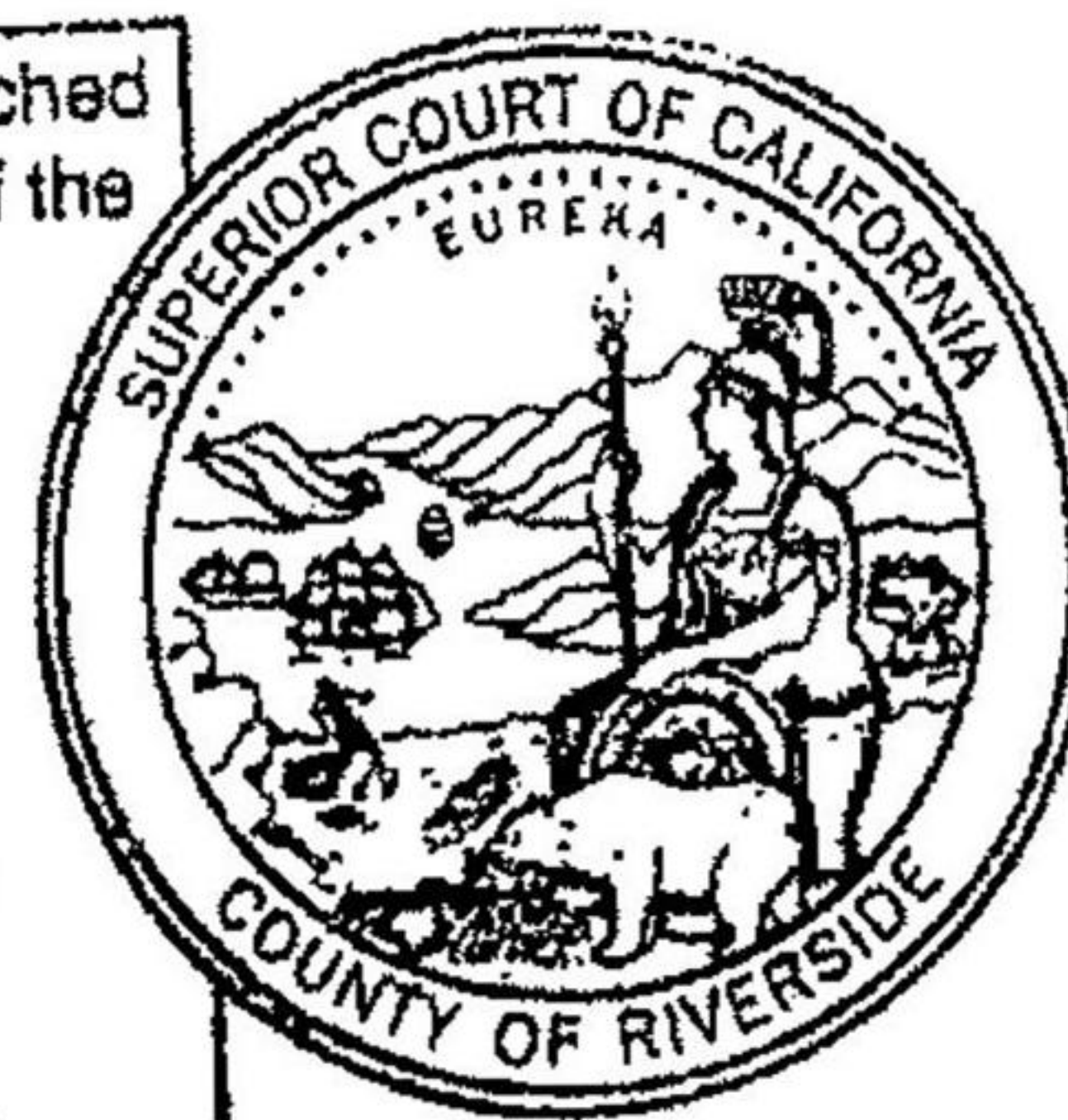
Superior Court of California  
County of Riverside

By

DEPUTY

Dated:

08/08/12



Certification must be in red to be a  
"CERTIFIED COPY"



6/11/12  
Dud

RECEIVED  
SUPERIOR COURT OF CALIF.  
COUNTY OF RIVERSIDE SWF1102908, SWF1102856,  
2812 JUN 11 PM 4:01 RIF1104448 CONSOLIDATED  
UNDER RIF1102114

PAUL E. ZELLERBACH  
District Attorney  
County of Riverside  
3960 Orange Street, First Floor  
Riverside, California 92501  
Telephone: (951) 955-5400  
Arthur M. Chang  
Supervising Deputy District Attorney  
State Bar No. 143744

FILED  
SUPERIOR COURT OF CALIFORNIA  
COUNTY OF RIVERSIDE  
JUN 26 2012

ORIGINAL

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF RIVERSIDE  
(Riverside)

THE PEOPLE OF THE STATE OF CALIFORNIA,  
  
Plaintiff,  
  
v.  
  
FERNANDO CORIA JR.,  
AKA: FERNANDO JUNIOR CORIA  
  
RUDY ANTHONY CLINE;  
  
Defendants.

NO. RIF1102114 Δ#3  
  
AMENDED  
INFORMATION

COUNT 1

The District Attorney of the County of Riverside hereby accuses FERNANDO CORIA JR. of a violation of Penal Code section 211, a felony, in that on or about March 2, 2011, in the County of Riverside, State of California, he did wilfully and unlawfully in an inhabited dwelling house and by means of force and fear take personal property from the person, possession, and immediate presence of PAUL GARAY-ROMERO within the meaning of section 212.5(a) of the Penal Code.

The District Attorney of the County of Riverside further charges that in the commission of the offense hereinabove set forth in count 1 of the amended information, the said defendant, FERNANDO CORIA JR., was acting in concert with two or more persons within the meaning of Penal Code section 213, subdivision (a), subsection (1), subparagraph (A).



1 The District Attorney of the County of Riverside further charges that in the commission  
2 of the offense hereinabove set forth in count 1 of the amended information, the said defendant,  
3 FERNANDO CORIA JR., personally inflicted great bodily injury upon PAUL GARAY-  
4 ROMERO, not an accomplice to the above offense, within the meaning of Penal Code sections  
5 12022.7, subdivision (a) and 1192.7, subdivision (c), subsection (8).

6 The District Attorney of the County of Riverside further charges that in the commission  
7 and attempted commission of the offense hereinabove set forth in count 1 of the amended  
8 information, the defendant, FERNANDO CORIA JR., personally used a deadly and dangerous  
9 weapon, to wit, a TIRE IRON, said use not being an element of the above offense, within the  
10 meaning of Penal Code sections 12022, subdivision (b), subsection (1) and 1192.7, subdivision  
11 (c), subsection (23).

12 The District Attorney of the County of Riverside further charges that the defendant  
13 FERNANDO CORIA JR., committed the offense hereinabove set forth in count 1 of the  
14 amended information for the benefit of, at the direction of, and in association with a criminal  
15 street gang with the specific intent to promote, further and assist in any criminal conduct by  
16 gang members, within the meaning of Penal Code section 186.22, subdivision (b)(1)(C).

17 COUNT 2

18 For a further and separate cause of action, being a different offense from but connected  
19 in its commission with the charge set forth in count 1 hereof, the District Attorney of the  
20 County of Riverside hereby accuses FERNANDO CORIA JR. of a violation of Penal Code  
21 section 245, subdivision (a), subsection (1), a felony, in that on or about March 2, 2011, in the  
22 County of Riverside, State of California, he did wilfully and unlawfully commit an assault upon  
23 PAUL GARAY-ROMERO, with a deadly weapon other than a firearm, to wit: a TIRE IRON,  
24 and by means of force likely to produce great bodily injury.

25 The District Attorney of the County of Riverside further charges that in the commission  
26 of the offense hereinabove set forth in count 2 of the amended information, the said defendant,  
27 FERNANDO CORIA JR., personally inflicted great bodily injury upon PAUL GARAY-  
28 ROMERO, not an accomplice to the above offense, within the meaning of Penal Code sections  
29 12022.7, subdivision (a) and 1192.7, subdivision (c), subsection (8).

30 COUNT 3

31 For a further and separate cause of action, being a different offense from but connected  
32 in its commission with the charges set forth in counts 1 and 2 hereof, the District Attorney of  
33 the County of Riverside hereby accuses FERNANDO CORIA JR. of a violation of section  
34 186.22, subdivision (a), of the Penal Code, a felony, in that on or about March 2, 2011, in the

35 ///

36 ///



1 County of Riverside, State of California, he did wilfully and unlawfully actively participate in a  
2 criminal street gang with knowledge that its members engaged in and have engaged in a pattern  
3 of criminal gang activity, and wilfully promoted, furthered and assisted in any felonious  
4 criminal conduct by members of that gang, to wit: ELSINORE VATO LOCOS.

5 COUNT 4

6 For a further and separate cause of action, being a different offense from but connected  
7 in its commission with the charges set forth in counts 1 through 3 hereof, the District Attorney  
8 of the County of Riverside hereby accuses FERNANDO CORIA JR. and RUDY ANTHONY  
9 CLINE of a violation of Penal Code section 664/187, subdivision (a), a felony, in that on or  
10 about March 29, 2011, in the County of Riverside, State of California, they did wilfully,  
11 unlawfully, and with malice aforethought attempt the willful, deliberate and premeditated  
12 murder of JOHN DOE #1, a human being.

13 The District Attorney of the County of Riverside further charges that the said  
14 defendants, FERNANDO CORIA JR. and RUDY ANTHONY CLINE, committed the offense  
15 hereinabove set forth in count 4 of the amended information for the benefit of, at the direction  
16 of, and in association with a criminal street gang with the specific intent to promote, further and  
17 assist in any criminal conduct by gang members, within the meaning of Penal Code section  
18 186.22, subdivision (b)(1)(C).

19 The District Attorney of the County of Riverside further charges that in the commission  
20 and attempted commission of the offense hereinabove set forth in count 4 of the amended  
21 information, the defendant, RUDY ANTHONY CLINE, personally used a deadly and  
22 dangerous weapon, to wit, a KNIFE, said use not being an element of the above offense, within  
23 the meaning of Penal Code sections 12022, subdivision (b), subsection (1) and 1192.7,  
24 subdivision (c), subsection (23).

25 COUNT 5

26 For a further and separate cause of action, being a different offense from but connected  
27 in its commission with the charges set forth in counts 1 through 4 hereof, the District Attorney  
28 of the County of Riverside hereby accuses FERNANDO CORIA JR. and RUDY ANTHONY  
29 CLINE of a violation of Penal Code section 245, subdivision (a), subsection (1), a felony, in  
30 that on or about March 29, 2011, in the County of Riverside, State of California, they did  
31 wilfully and unlawfully commit an assault upon JOHN DOE #2, with a deadly weapon other  
32 than a firearm, to wit: a WOODEN CLUB, and by means of force likely to produce great bodily  
33 injury.

34 ///

35 ///

36 ///



1 The District Attorney of the County of Riverside further charges that the defendants,  
2 FERNANDO CORIA JR. and RUDY ANTHONY CLINE, committed the offense hereinabove  
3 set forth in count 5 of the amended information for the benefit of, at the direction of, and in  
4 association with a criminal street gang with the specific intent to promote, further and assist in  
5 any criminal conduct by gang members, within the meaning of Penal Code section 186.22,  
6 subdivision (b)(1)(C).

7 COUNT 6

8 For a further and separate cause of action, being a different offense from but connected  
9 in its commission with the charges set forth in counts 1 and 5 hereof, the District Attorney of  
10 the County of Riverside hereby accuses FERNANDO CORIA JR. and RUDY ANTHONY  
11 CLINE of a violation of Penal Code section 245, subdivision (a), subsection (1), a felony, in  
12 that on or about March 29, 2011, in the County of Riverside, State of California, they did  
13 wilfully and unlawfully commit an assault upon JOHN DOE #3, with a deadly weapon other  
14 than a firearm, to wit: a WOODEN CLUB, and by means of force likely to produce great bodily  
15 injury.

16 The District Attorney of the County of Riverside further charges that the defendants,  
17 FERNANDO CORIA JR. and RUDY ANTHONY CLINE, committed the offense hereinabove  
18 set forth in count 6 of the amended information for the benefit of, at the direction of, and in  
19 association with a criminal street gang with the specific intent to promote, further and assist in  
20 any criminal conduct by gang members, within the meaning of Penal Code section 186.22,  
21 subdivision (b)(1)(C).

22 COUNT 7

23 For a further and separate cause of action, being a different offense from but connected  
24 in its commission with the charges set forth in counts 1 through 6 hereof, the District Attorney  
25 of the County of Riverside hereby accuses FERNANDO CORIA JR. and RUDY ANTHONY  
26 CLINE of a violation of Penal Code section 245, subdivision (a), subsection (1), a felony, in  
27 that on or about March 29, 2011, in the County of Riverside, State of California, they did  
28 wilfully and unlawfully commit an assault upon JOHN DOE #4, with a deadly weapon other  
29 than a firearm, to wit: a WOODEN CLUB, and by means of force likely to produce great bodily  
30 injury.

31 The District Attorney of the County of Riverside further charges that the defendants,  
32 FERNANDO CORIA JR. and RUDY ANTHONY CLINE, committed the offense hereinabove  
33 set forth in count 7 of the amended information for the benefit of, at the direction of, and in  
34 association with a criminal street gang with the specific intent to promote, further and assist in  
35 any criminal conduct by gang members, within the meaning of Penal Code section 186.22,  
36 subdivision (b)(1)(C).



COUNT 8

For a further and separate cause of action, being a different offense from but connected in its commission with the charges set forth in counts 1 through 7 hereof, the District Attorney of the County of Riverside hereby accuses FERNANDO CORIA JR. and RUDY ANTHONY CLINE of a violation of section 186.22, subdivision (a), of the Penal Code, a felony, in that on or about March 29, 2011, in the County of Riverside, State of California, they did wilfully and unlawfully actively participate in a criminal street gang with knowledge that its members engaged in and have engaged in a pattern of criminal gang activity, and wilfully promoted, furthered and assisted in any felonious criminal conduct by members of that gang, to wit: ELSINORE VATO LOCOS.

COUNT 9

For a further and separate cause of action, being a different offense from but connected in its commission with the charges set forth in counts 1 through 8 hereof, the District Attorney of the County of Riverside hereby accuses FERNANDO CORIA JR. of a violation of Penal Code section 12020, subdivision (a), subsection (4), a felony, in that on or about August 12, 2011, in the County of Riverside, State of California, he did wilfully and unlawfully carry concealed upon his person a dirk and dagger.

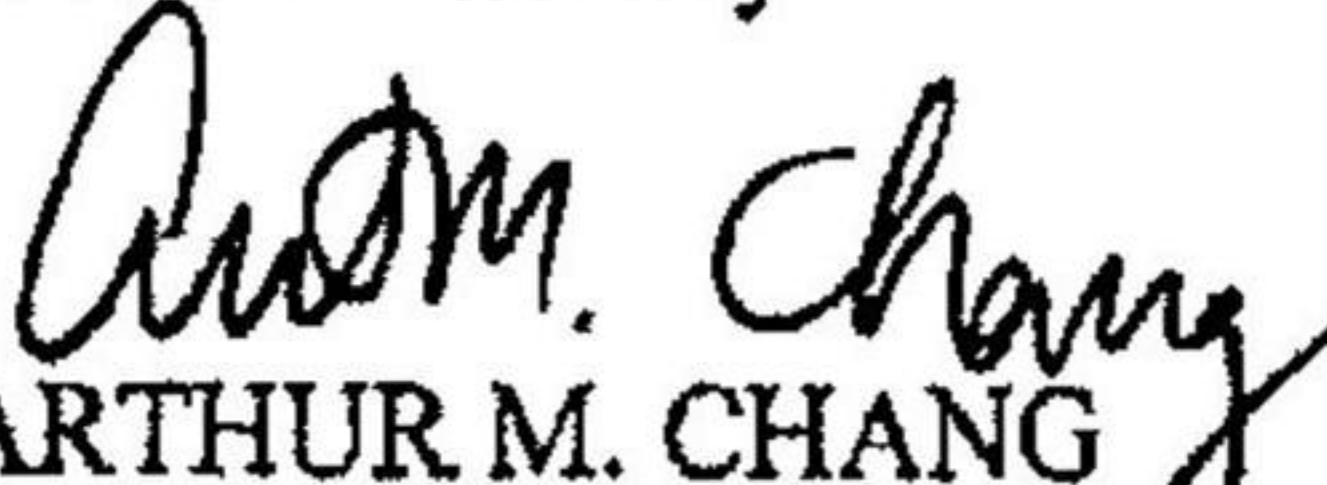
The District Attorney of the County of Riverside further charges that the defendant, FERNANDO CORIA, committed the felony offense hereinabove set forth in count 9 of the amended information while released from custody prior to the judgment becoming final on a primary offense, within the meaning of Penal Code section 12022.1.

COUNT 10

For a further and separate cause of action, being a different offense from but connected in its commission with the charges set forth in counts 1 through 9 hereof, the District Attorney of the County of Riverside hereby accuses FERNANDO CORIA JR. of a violation of section 186.22, subdivision (a), of the Penal Code, a felony, in that on or about August 12, 2011, in the County of Riverside, State of California, he did wilfully and unlawfully actively participate in a criminal street gang with knowledge that its members engaged in and have engaged in a pattern of criminal gang activity, and wilfully promoted, furthered and assisted in any felonious criminal conduct by members of that gang, to wit: ELSINORE VATO LOCOS.

PAUL E. ZELLERBACH

District Attorney



ARTHUR M. CHANG

Supervising Deputy District Attorney

AMC:mrg